

Nepal Sanskrit University Act, 1986

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Amending Acts

1. Mahendra Sanskrit University (First Amendment) Act, 2049 2049.07.21

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2. Some Nepal Laws Amendment Act, 2063 2063.06.28

3. Some Nepal Acts Amendment Act, 2064 2064.05.09

4. Nepal Sanskrit University (Second Amendment) Act, 2064 2064.09.30

This Act shall be effective from Jestha 15, 2065.5. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07

6. Act to Amend Some Nepal Acts Relating to Education, 2077 2077.03.11

7. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 21 of the year 2043

Act made to establish the Nepal Sanskrit University

Preamble: To systematize Sanskrit education up to the highest level in Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., to study, research, preserve and promote the special achievements that Sanskrit learning has been attaining in various fields in a timely manner, while upholding traditional religion and moral values, good conduct and good character, to develop Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. as a centre to obtain knowledge and inspiration of Sanskrit learning, and

Amended by the Some Nepal Laws Amendment Act, 2063. Whereas, in the Nepal state, there has been a glorious tradition of Sanskrit learning since very ancient times, and it is desirable to establish a University to continue that tradition,

This Act has been made by King Birendra Bir Bikram Shah Dev with the advice and consent of the National Panchayat. 1. Short Title and Commencement: (1) This Act may be called the "Nepal Sanskrit University Act, 2043".

(2) Sections 1, 3, 4, 14, 15, 16, 17 and 18 of this Act shall come into force immediately, and the other Sections shall come into force from the date specified by the Government of Nepal by notification published in the Nepal Gazette. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "University" means the Nepal Sanskrit University under this Act.

(b) "Assembly" means the University Assembly under Section 4.

(c) "Executive Council" means the Executive Council under Section 6.

(d) "Academic Council" means the Academic Council under Section 8.

Added by the Second Amendment.(d1) "Service Commission" means the Service Commission under Section 9A. (e) "Examination Committee" means the Examination Committee under Section 26. (f) "Central Office" means the collective form of the offices of the Vice-Chancellor, the Rector and the Registrar. (g) "College" means a College under this Act. (h) "Principal" means the head of a College. (i) "Teacher" means Professor, Co-Professor, Associate Professor and Assistant Professor providing education in the University, and the word also includes instructors at various levels of the University and a person specified as a teacher by rules made under this Act. (j) "Prescribed" or "as prescribed" means prescribed or as prescribed by rules made under this Act. 3. Establishment of the University: (1) There shall be established a University for the conduct of higher education in Sanskrit. (2) The University shall be a corporate body with perpetual succession. It shall have a seal for this purpose, and may acquire, hold, mortgage and sell movable and immovable property. It may sue and be sued in its own name. (3) The Central Office of the University shall be located in Dang. Amended by the First Amendment.4.

Constitution of the University Assembly: (1) There shall be a University Assembly consisting of the following members:- (a) Chancellor - Chairperson (b) Pro-Chancellor - Vice-Chairperson (c) Vice-Chancellor - Member (d) Deleted by the Some Nepal Laws Amendment Act, 2063 (e) Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (f) Member of the National Planning Commission (looking after education) - Member (g) Vice-Chancellor, Tribhuvan University - Member Amended by the Second Amendment.(h) Vice-Chancellor, Nepal Academy - Member Amended by the Second Amendment.(i) Vice-Chancellor, Nepal Academy of Science and Technology - Member (j) Rector - Member Secretary (k) One person from among the former Vice-Chancellors of Universities - Member Amended by the Second Amendment.(l) Secretary, Amended by the Ministry of Education, Science and Technology.Ministry of Education, Science and Technology - Member (m) Secretary, Ministry of Finance - Member Added by the Second Amendment.(m1) Chairperson, University Grants Commission - Member (n) Chairperson, Guthi Corporation - Member (o) Registrar - Member (p) Executive Director, Nepal Sanskrit University Research Centre - Member (q) One person from among the Principals - Member (r) Three persons including at least one woman, elected from among the teachers by the electoral college of the chairperson and secretary of the Nepal Sanskrit University College Teachers' Association unit, on the basis of proportional single transferable vote Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077. - Member Explanation: A teacher desiring to be a candidate in the election under this clause must have been in the permanent service of the University for at least fifteen years. For the purpose of this explanation, permanent service of the University also means permanent service rendered in other universities of Nepal.

Added by the Some Nepal Laws Amendment Act, 2063.(r1) One representative of the Nepal Sanskrit University Professors' Association - Member (s) One person from among educationists - Member (t) One person from among distinguished Sanskrit scholars - Member (u) One representative of the Nepal Professors' Association - Member (v) One representative of the Nepal Sanskrit University Employees' Association - Member (w) One person from among donors - Member (x) One distinguished social worker - Member (y) One person from among the chairpersons of the Nepal Sanskrit University Free Students' Union - Member (2) The nomination of other members of the Assembly, other than elected and ex-officio members, shall be made by the Chancellor on the recommendation of the Executive Council. (3) The term of office of the student

representative shall be one year, and the term of office of other members, other than ex-officio members, shall be three years. Added by the Act to Amend Some Nepal Acts Relating to Education, 2077.(4) The person presiding over the meeting of the Assembly shall certify the decisions of the meeting. 5. Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:- (a) To establish, operate and manage colleges for Sanskrit higher education, (b) To establish and confer degrees of Uttar Madhyama, Shastri, Acharya and Vidyavaridhi, (c) To approve the annual programme and pass the annual budget of the University, (d) To pass the regulations of the University, (e) To provide guidance to the University, (f) To discuss the annual report of the University and evaluate the programme, (g) To discuss and approve the audit report, (h) Deleted by the First Amendment. (i) To form special committees as required. 6. Constitution of the Executive Council: (1) There shall be an Executive Council of the University consisting of the following members:- (a) Vice-Chancellor - Chairperson (b) Rector - Member (c) Registrar - Member (d) One person from among the Principals - Member Amended by the First Amendment.(e) One person from among the teachers - Member (2) The members under clauses (d) and (e) of sub-section (1) shall be nominated Added by the Second Amendment.by the Assembly for three years on the recommendation of the Vice-Chancellor. 7.

Functions, Duties and Powers of the Executive Council: The functions, duties and powers of the Executive Council shall be as follows:- (a) To implement the decisions and directives of the Assembly, (b) Deleted by the Some Nepal Laws Amendment Act, 2063. (c) To prepare the programme, budget, progress report, audit report and other proposals to be presented to the Assembly, (d) To accept donations and gifts received by the University, (e) To protect the fund and movable and immovable property of the University and, within the policies and directives of the Assembly, to sell them as necessary, (f) To oversee the activities conducted under the University, (g) To prepare drafts of regulations relating to the University and present them to the Assembly, (h) To appoint teachers and employees of the University and Principals of Colleges, Added by the First Amendment.(i) To determine the posts of teachers and employees necessary for academic and administrative work. Amended by the First Amendment.8. Constitution of the Academic Council: (1) There shall be an Academic Council as the principal body in the educational and academic field of the University, consisting of the following members:- (a) Vice-Chancellor - Chairperson (b) Rector - Member Secretary (c) Registrar - Member (d) Executive Director, Research Centre - Member Added by the Second Amendment.(d1) Controller of Examinations - Member Added by the Second Amendment.(d2) Chairperson, Nepal Sanskrit University Professors' Association - Member (e) Five Chairpersons of Subject Committees - Member (f) Five persons from among Heads of Departments - Member (g) Two persons from among Principals - Member Added by the Second Amendment.(g1) One person from among Principals of affiliated Colleges - Member (h) Two persons from among senior teachers - Member (2) The nomination of members other than ex-officio members shall be made Added by the Second Amendment.by the Assembly on the recommendation of the Vice-Chancellor. (3) The term of office of members other than ex-officio members shall be three years. 9. Functions, Duties and Powers of the Academic Council: The functions, duties and powers of the Academic Council shall be as follows:- (a) To act as the principal body in the educational and academic matters of the University, (b) To determine the quality of study and teaching in the University, curriculum, level and type of examinations, evaluation methods, teaching materials, the number and qualifications for student admission, (c) To formulate research policies and approve research programmes, (d) To evaluate the academic programme of students, (e) To determine the standard of teaching and research, (f) To make provisions for degrees and honorary degrees, (g) To determine the minimum qualifications for teachers for various levels. Added by the Second Amendment.9A.

Service Commission: (1) For the recommendation to the Executive Council for the appointment and

promotion of teachers and employees of the University, a Service Commission shall be constituted consisting of the following members:- (a) Person appointed by the Chancellor - Chairperson (b) Member, Public Service Commission - Member (c) One person from among professors - Member (2) A committee consisting of two members of the Assembly under the chairpersonship of the Pro-Chancellor shall be formed to recommend for the appointment of the Chairperson and member under clauses (a) and (c) of sub-section (1), and the Chairperson and member shall be appointed by the Chancellor on the recommendation of that committee. (3) The term of office of the Chairperson and member appointed under sub-section (2) shall be three years. (4) Other functions, duties and powers of the Service Commission and the procedure relating to its meetings shall be as prescribed. (5) The remuneration, facilities and other terms of service of the Chairperson of the Service Commission and the facilities of the member shall be as prescribed. 10. Organisation of the University: Amended by the First Amendment.(1) The collective form of the Chancellor, Pro-Chancellor, Central Office, Added by the Second Amendment.Service Commission, Research Centre, constituent Colleges and affiliated Colleges shall be the form of the University. (2) There shall be prescribed colleges for prescribed subjects for higher education. (3) The functions, duties and powers of a College shall be as prescribed. 11. Responsibility and Delegation of Powers: (1) Except as otherwise provided in this Act or in the rules Amended by the Second Amendment.made under this Act, all other powers shall vest in the Assembly. (2) The Assembly may delegate all or some of its powers mentioned in this Act or in the rules Amended by the Second Amendment.made under this Act to the Executive Council, the Academic Council and other officers or to a committee established as prescribed. 12. No Discrimination on Ground of Religion, Caste, Race, Colour, Sex or Creed: No person shall, on grounds of religion, caste, race, colour, sex or any creed, be deprived of the right to hold any office or to obtain any post-graduate degree, graduate degree, certificate or other educational degree or to study or receive facilities of the University. 13. Officers: The officers of the University shall be as follows:- (a) Chancellor (b) Pro-Chancellor (c) Vice-Chancellor Added by the Second Amendment.(c1) Chairperson of the Service Commission" (d) Rector (e) Registrar (f) Principals Amended by the Second Amendment.(g) Other officers as prescribed. 14.

Chancellor: Amended by the Some Nepal Laws Amendment Act, 2063.(1) The Prime Minister shall be the Chancellor of the University. (2) The Chancellor shall be the head of the University and the Chairperson of the Assembly. When present, he/she shall occupy the chair at meetings of the Assembly and at the convocation ceremony of the University. (3) The Chancellor shall have the right to inspect or cause to be inspected and to give directives Added by the Act to Amend Some Nepal Acts Relating to Education, 2077.on any matter or thing relating to the University. (4) Any act contrary to this Act or to the rules Amended by the Second Amendment.made under this Act may be annulled by the Chancellor. (5) Other powers of the Chancellor shall be as prescribed. 15. Pro-Chancellor: (1) Deleted by the Some Nepal Laws Amendment Act, 2063. Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077.The Minister or State Minister for Education, Science and Technology shall be the Pro-Chancellor of the University. Deleted by the Second Amendment (2) In the absence of the Chancellor, the Pro-Chancellor shall perform the duties of the Chancellor. (3) The Pro-Chancellor may, as necessary, inspect or cause to be inspected and give lawful directives to the University. 16. Vice-Chancellor: (1) For recommending for appointment to the post of Vice-Chancellor of the University, a committee of three persons shall be formed by the Chancellor from among the members of the Assembly. (2) The committee formed under sub-section (1) shall submit a recommendation of a list of at least three names to the Chancellor for the post of Vice-Chancellor. (3) The Vice-Chancellor shall be appointed by the Chancellor after considering the recommendation submitted under sub-section (2). (4) The term of office of the Vice-Chancellor shall be four years at a time. (5) In the absence of the Vice-Chancellor, arrangements for carrying out his/her work shall be as determined by the Chancellor.

(6) Until arrangements are made under sub-section (5), the Rector shall carry out the work of the Vice-Chancellor. (7) The Vice-Chancellor shall be a salaried officer working full-time.

His/her remuneration and other terms of service shall be as prescribed.

(8) The Vice-Chancellor shall be the principal administrative and academic officer of the University.

(9) In the absence of both the Chancellor and the Pro-Chancellor, the Vice-Chancellor shall preside over the convocation ceremony and the Assembly of the University.

(10) It shall be the duty of the Vice-Chancellor to comply with and ensure compliance with this Act or the rules made under this Act, and for this purpose, if the Vice-Chancellor is of the opinion that an emergent situation has arisen requiring immediate action, he/she may take such action as he/she deems proper and necessary, and shall give notice thereof to the concerned officer or body as soon as possible.

(11) The Vice-Chancellor shall implement the decisions or orders of the Assembly.

(12) The Vice-Chancellor shall have general control over all activities of the University.

(13) All subjects to be presented to the Assembly shall be presented through the Vice-Chancellor.

(14) Other functions, duties and powers of the Vice-Chancellor shall be as prescribed. 17. Rector: Amended by the First Amendment.(1) The Rector of the University shall be appointed by the Chancellor on the recommendation of the Vice-Chancellor for a term of four years at a time.

(2) The Rector shall be a salaried officer working full-time.

(3) In the absence of the Rector, the Chancellor shall appoint the Registrar to carry out the work of the Rector.

(4) Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077.The Rector shall record the decisions or orders of the Assembly. A copy of such decision or order shall be sent to the Chancellor.

(5) The academic administration of the University shall be under the supervision of the Rector.

(6) Other functions, duties and powers of the Rector and his/her remuneration and terms of service shall be as prescribed. 18.

Registrar: Amended by the First Amendment.(1) The Registrar of the University shall be appointed by the Chancellor on the recommendation of the Vice-Chancellor for a term of four years at a time. (2) The Registrar shall be a salaried officer working full-time. (3) The general administration and fund of the University shall be under the supervision of the Registrar, and he/she shall advise the Assembly on the financial policy to be adopted by the University as he/she thinks appropriate. (4) The responsibility of preparing the annual estimate of income and expenditure of the University to be presented to the Assembly, registering the names of students and making arrangements for certificates shall lie with the Registrar. (5) The Registrar shall cause the accounts of the University to be audited as prescribed and submit the report thereof to the Assembly. (6) Other functions, duties and powers of the Registrar and his/her remuneration and terms of service shall be as prescribed. 19. Principal and Other Officers: The appointment, terms of service, functions, duties and powers of the Principals and other officers mentioned in clauses (f) and (g) of Section 13 shall be as prescribed. 19A. Period within which Appointment to be Made: Added by the Some Nepal Acts Amendment Act, 2064.Notwithstanding anything contained elsewhere in this Act, if the post of any officer of the University falls vacant, the concerned authority shall make an appointment to fill such post within three months of the

vacancy. 19B. Power to Assign Responsibility: Added by the Some Nepal Acts Amendment Act, 2064. Notwithstanding anything contained elsewhere in this Act, if any post of the University falls vacant, until such post is filled, the Chancellor, in consultation with the Pro-Chancellor, may assign the responsibility of the Vice-Chancellor to a senior-most professor of the University, and the Vice-Chancellor may assign the responsibility of other officers to a senior-most professor of the University, for a maximum period of three months to conduct the daily work. 19C.

Power to Remove from Office: Added by the Act to Amend Some Nepal Acts Relating to Education, 2077. (1) If one-third of the members present in the Assembly submit a written petition to the Chancellor alleging that the Vice-Chancellor, Rector, Registrar or Chairperson of the Service Commission has failed to fulfil the responsibility appropriate to his/her office, has not worked honestly, or has not conducted himself/herself in a manner befitting the office, the Chancellor shall constitute a three-member investigation committee consisting of a member of the University Grants Commission and the Secretary of the Ministry of Education, Science and Technology, under the chairpersonship of any member of the Assembly. (2) The investigation committee formed under sub-section (1) shall conduct necessary investigation into the matter and submit its report to the Chancellor within thirty days. (3) Upon receipt of the report under sub-section (2), the Chancellor shall present that report to the Assembly. (4) If, during discussion on the report submitted under sub-section (2), at least fifty-one percent of the total number of members of the Assembly decide to remove the Vice-Chancellor, Rector, Registrar or Chairperson of the Service Commission from office, the Chancellor shall remove the Vice-Chancellor, Rector, Registrar or Chairperson of the Service Commission from office. Provided that such person shall not be deprived of the opportunity to present a defence before being so removed. (5) The procedure to be followed when investigating allegations against or removing other officers of the University, other than the Vice-Chancellor, Rector, Registrar and Chairperson of the Service Commission, under sub-section (1) shall be as prescribed. (6) If an investigation against any officer under this Section is initiated, a final decision must be made within six months. Until such final decision is made, such person shall not be entitled to work in the post he/she holds. (7) The Chancellor may assign the responsibility for conducting the daily work of an officer under sub-section (6) to the senior-most officer of the University. 20. University Fund and its Operation and Use: (1) There shall be a Fund of the University, which shall consist of the following amounts:- (a) Amount provided by the Government of Nepal to the University, (b) Amount borrowed by the University, (c) All amounts received for the University, (d) Amounts given as donations and financial assistance for the University, and (e) Amounts received from monthly fees and other sources. (2) The amount of the University Fund shall be deposited by opening an account in a prescribed bank. (3) The operation of that Fund shall be as prescribed. (4) The amount of the University shall be used for prescribed work. 21.

Annual Estimate of Income and Expenditure and Accounts: (1) The annual and supplementary estimates of income and expenditure of the University shall be presented to the Assembly through the Registrar. (2) The accounts of the University shall be kept as prescribed. 22. Audit: Amended by the First Amendment. The audit of the University shall be conducted Amended by the Second Amendment. by the Auditor General. 23. Sanskrit Study Institute to be Converted into College: (1) The teaching institutions under the Sanskrit Study Institute that are in operation in Nepal at the time of the commencement of this Act shall, after the commencement of this Act, be converted into Colleges. (2) The head of each College shall be the Principal. 24. Repealed by the Second Amendment 25. Repealed by the Second Amendment 26. Examination Committee: For all provisions relating to the conduct of examinations under this Act, an Examination Committee shall be constituted as prescribed. 27. Repealed by the Second Amendment 28. Functions, Duties and Powers of the Examination Committee: The functions, duties and powers of the Examination Committee shall be as prescribed. 29. Qualifications Required for Admission to the University: Students who

have passed the following examination shall be admitted to the University as prescribed:- (a) Secondary Education Passing Examination (School Leaving Certificate Examination) in prescribed subjects and level, or (b) Any other examination which the University has prescribed as equivalent to the examination mentioned in clause (a). 29A. Free Higher Education and Scholarships: Added by the Act to Amend Some Nepal Acts Relating to Education, 2077.(1) Higher education shall be free for students belonging to Dalit, marginalized, disabled and economically disadvantaged groups who have been admitted to the University or its constituent and community educational institutions under its jurisdiction fulfilling the criteria prescribed by the University. (2) For the purpose of sub-section (1), other provisions relating to the basis, criteria and classification shall be as prescribed by the Government of Nepal by notification published in the Nepal Gazette. (3) Amended by the Some Nepal Acts Amendment Act, 2082.(3) A student may avail the facility under sub-section (1) only once at each level. (4) Notwithstanding anything contained in the prevailing law, a prescribed number of seats shall be reserved for Dalit students for admission to technical and vocational higher education. (5) The University shall make arrangements for higher education for the sons and daughters of martyrs, persons made disappeared and persons with disabilities as provided in the prevailing law. (6) A student who has studied in a community school from class six to class ten shall receive a scholarship in higher education as per the prevailing law. 30.

Annual Report: The annual report of the University shall be presented to the Assembly within the prescribed period, and the Assembly shall, at its annual meeting, consider that report and pass it with or without amendment. 31. Nomination: The nomination of members of the Assembly and the filling of vacancies of members shall be as prescribed under this Act. 32. Proceeding not to be Invalid: If any office of the University falls vacant, or there is a defect in the appointment of any officer or in the constitution of any body, and an act or proceeding is carried out, such act or proceeding shall not be deemed invalid only by reason of that cause. 33. Provisions Relating to Disputes of Service Conditions: Any dispute arising between the University and any officer, teacher or employee of the University regarding service conditions shall be decided as prescribed. 34. Protection for Acts Done in Good Faith: No suit or other proceedings shall lie against the University or any officer of the University in respect of any act done or intended to be done in good faith under this Act. Added by the Second Amendment.34A. Contact with Government of Nepal: The University shall make contact with the Government of Nepal through the Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077.Ministry of Education, Science and Technology. 35. Exemptions and Facilities to the University: Notwithstanding anything contained in the prevailing law, if any instrument requiring registration of the University is to be registered, no registration fee shall be chargeable. Added by the Some Nepal Acts Amendment Act, 2064.35A. Approval Required: Notwithstanding anything contained elsewhere in this Act, while making rules or doing any act which will cause additional financial burden on the Government of Nepal, prior approval of the Government of Nepal shall be obtained. 36. Amended by the Second Amendment.Power to Make Rules: The University may make necessary rules Amended by the Second Amendment. to implement the objectives of this Act.